



VICTORIA POLICE

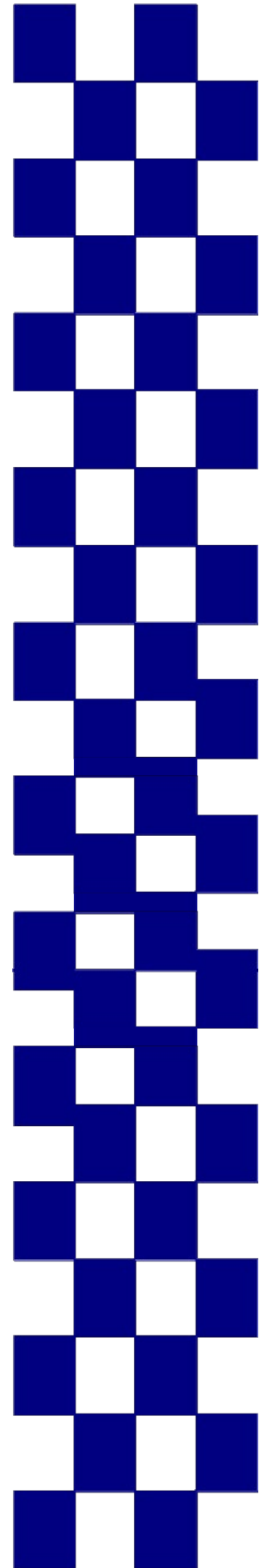
Prosecutions Division Legal Services Department

POL87115 Graduate Certificate in Police Prosecution

Module 2 Intensive Guide

Version 2024.4

Sergeant Brad Proud
Legal Training & Development Unit
Created 5 May 2023



Context

The POL87115 Graduate Certificate in Police Prosecutions is a nationally recognised qualification delivered by the Legal Training & Development Unit (LTDU) to new Prosecutors. The course is divided into 3 modules which work to build skills and knowledge needed in the role of Prosecutor. While the Module 1 component is now delivered online with the use of FAST TRACK rostering, Module 2 will be transitioning back into face-to-face delivery at 6/456 Lonsdale St, Melbourne.

The LTDU now offer a 4-week intensive for students needing to complete all parts of the Module 2 of POL87115. During the transition phase from online to in-person the course will be delivered in 2 parts, to allow students who may have completed M2.2 to only enrol in part B (weeks 3-4).

Access to this course will occur via expression of Interest to the LSD-RTU-OIC PBEA. Only students who have completed ALL elements of Module 1 (including Evidence Portfolios) are eligible to apply.

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Instructor	Lou Gerrard	LG
Instructor	Rachael Hitchens	RH
Instructor	Jakeb Cheney	JC
Instructor	Clarissa Park	CP
Instructor	Nathan Greenwood	NG
Instructor	Sarah Rafferty	SR
Instructor	Michael Duthil	MD
Instructor	Andrew Gannon	AG
Instructor	Andrew McSwain	AM
Instructor	Lauren Dri	LD
Instructor	Simon Phillips	SP
Instructor	Emily Hudson	EH
Instructor	Aaron Towns	AT

Module 2 Intensive

Location and Dress standard

During this period the students will attend in-person Monday-Friday 8am-4pm at level 6/456 Lonsdale St, Melbourne in **Uniform only** (Office kit with tie). Lockers will be provided for members. VPS Lawyers who attend the course may wear Business attire. Students are required to display their Police ID if accessing locker rooms on any floor.

All lectures delivered during Module 2 are presented by LTDU instructors and may utilise some recorded material. The academic and practical components are delivered over a 4-week period in two distinct parts and includes a prerequisite for student to complete all prescribed reading prior to attendance.

In the first 2 weeks, students will attend lectures and participate in instructor led workshops, before completing RASE assessments and exams. The academic lectures will then be followed by 2 weeks of Contested Hearing workshops and Moot assessments (weeks 3-4). All face-to-face delivery will be conducted at the Legal Training & Development Unit, Level 6/456 Lonsdale Street, Melbourne 3000.

Student Behaviour & Performance

General Behaviour

Students will be required to engage in class discussions, make practice submissions in class, and submit all assessment tasks set each day. Students who do not submit assessments or participate fully in class discussion will be spoken to by the Course Manager for welfare concerns and may be exited from the intensive course.

Performance Requirements

Students will be allowed a maximum of 3 attempts to “Meet Requirements” on each RASE and Exam. In the event of being found “Further Evidence Required” after 3 attempts, students will be exited from the Intensive course and returned to their work unit.

In regard to practical Moot assessments, students will be allowed 2 attempts prior to them being returned to work unit.

On return to work unit, LSTO’s will engage with students to create a individual training plan in consultation with the Work unit OIC.

Computer/Laptop use during Module 2

We understand that throughout Module 2, learners will require the use of laptops and mobile phones. However, we encourage learners to take advantage of the opportunity to disconnect from their current workplace and responsibilities. The return to face-to-face modules provides the chance for learners to engage with instructors – therefore we ask that laptops remain closed, and phones are not used during classes unless required. If you require your laptop to be charged, there will be docking stations provided at the rear, and sides of the room. Laptop cords across the floor present an OHS hazard, and we ask that you respect the safety of all those in the Module 2 Intensive by not charging your laptop at your desk throughout the course.

Course Structure

Part 1 – Rules of Evidence M2.1- M2.2

During this period the student will be required to:

- Attend lectures each day in class
- participate fully in instructor led workshops
- contribute to class discussions
- complete 9 research exercises; and
- undertake 3 online exams

(Part 2) SCC/ CME and Contested Hearings (M2.3-2.6)

During this period the student is required to:

- Attend lectures each day in class
- participate fully in instructor led workshops

- participate in SCC/CME moots
- contribute to class discussions
- complete 2 assessable Contested Hearing Moots.

At the end of the 4-week period, the student will then return to their work unit and undertake Full Prosecution duties, subject to some minimal supervision requirements in their work unit. Students will also be required to complete Evidence portfolios. The completed portfolios must be submitted to LTDU for assessment **before** the student will be granted access to Module 3.

Assessment

Formative assessment is provided throughout the course to allow students to practice and identify areas of study they need to work on. This is achieved through gathering evidence of essential knowledge and skills as outlined in the student's resources. These tasks are separate to the summative (formal) assessment process that concludes each unit of competency.

Summative assessments will provide evidence of competency and allow students to apply knowledge and skills through direct observation in a range of practical scenarios, together with holistic, work-based, on-the-job components supported by third party reports.

Name	Format	Type	Date
Lectures	In class	Formative	Weeks 1,2
Rase Workshops	In class	Formative	Weeks 1,2
Research and Submission Exercise (RASE)	Written submission	Summative	Mon -Thursday Weeks 1,2
Exam 1 – M2.1	In class via Online	Summative	Tuesday Week 1
Exam 2 – M2.2A	In class via Online	Summative	Monday week 2
Exam 3 (Final) M2.2B	In class via Online	Summative	Monday week 3
SCC/ & CME moots	Moot Court (face to face)	Summative	Tuesday week 3
Interactive Contested Hearing Moots	Moot Court (face to face)	Formative	Friday week 3
Contested Hearing Moots	Moot Court (face to face)	Summative	Week 4 TBA

Lecture and Workshop participation

Due: Weeks 1 & 2

Workshop participation is mandatory. You must participate in this aspect of the course in order to pass module 2.

Lectures are to be presented by LTDU instructors but may occasionally use prerecorded material (Monday – Thursday). Students will then ask questions on course materials the same day during the instructor led workshops.

Due to time constraints, students may need to approach Instructors during the lunch break if they do require further assistance with any topic. If you cannot attend a lecture, you must send an email to your course manager to inform them of your absence. Your instructor may assign you work to complete in lieu of attendance.

Research and Submission Exercise (RASE)

Due: Monday-Thursday Wk 1,2

The RASE question and detailed instructions will be available to students each day on completion of the workshop. The RASE is a mandatory component and must be completed to attain a pass in Module 2. Learners will have the opportunity to seek instructor guidance regarding structure and layout of submissions. All work is to be submitted via email the same day. Late submissions without a valid reason will result a meeting with the course manager as to why the delay has occurred.

Exam 1

Scheduled: Tuesday **week 1** – Time to be advised

Assessment: MR / FER – re-sit available at date TBA

Exam 1 (M2.1 Defences) will be conducted through the VPLH. Learners will be required to attend at the LTDU classroom under supervised exam conditions. The learner **must** be monitored by a supervisor of or above the rank of sergeant for the duration of the exam. Prior to commencing the exam, learners will be required to acknowledge that they have read and understood the academic conduct policy by checking the requisite box on VPLH.

Exam 2 -

Scheduled: Monday **week 2** – Time to be advised

Assessment: MR / FER – re-sit available at date TBA

The Module 2 Exam 2 (M2.2A) will be conducted through the VPLH. Learners will be required to attend at the LTDU classroom under supervised exam conditions. The learner **must** be monitored by a supervisor of or above the rank of sergeant for the duration of the exam. Prior to commencing the exam, learners will be required to acknowledge that they have read and understood the academic conduct policy by checking the requisite box on VPLH. The topics for this exam are:

- Identification Evidence
- Admissions
- Opinion

Exam 3 – Final exam

Scheduled: Friday Week 2 – Time to be advised

Assessment: MR / FER – re-sit available at date TBA

The Module 2 Exam 2 (M2.2B) will be conducted through the VPLH. Learners will be required to attend at the LTDU classroom under supervised exam conditions. The learner **must** be monitored by a supervisor of or above the rank of sergeant for the duration of the exam. Prior to commencing the exam, learners will be required to acknowledge that they have read and understood the academic conduct policy by checking the requisite box on VPLH. The topics for this exam are:

- Hearsay
- Credibility
- Character

SCC & CME Moots Week 3

Assessment: MR / FER

Students will be required to prepare and case conference a SCC matter provided by instructors including email correspondence and face to face discussion. This assessment will then continue in a Moot court room where students will be required to conduct a CME with an assessor and make submissions on the issues with reference to facts, legislation and caselaw.

Moot Courts Weeks 3-4

Assessment: MR / FER

Students will be required to prepare and prosecute two simulated contested hearings in a moot court setting and meet the minimum requirements of competency. The assessments will be based on a demonstrated ability to identify and correctly apply relevant legislation, examine, and cross-examine witnesses and make appropriate submissions to the magistrate. Students will also be assessed on their court demeanor.

All students are expected to proceed into a period of supervised work placement including Contested Hearings at the completion of this learning, any Moot re-sits will be done at a date TBA.

Lecture layout

Week 1		
LECTURE	TOPIC	
Monday	Defences	
Tuesday	Circumstantial Evidence	
Wednesday	Hearsay	
Thursday	ID Evidence	
Friday	Opinion	

Week 2		
LECTURE	TOPIC	
Monday	Admissions	
Tuesday	Tendency & Coincidence	
Wednesday	Credibility	
Thursday	Unfavourable	
Friday	Mandatory & Discretionary Exclusions	
Week 3		
LECTURE	TOPIC	
Monday	CME / Human Rights	
Tuesday	SCC/CME assessment	
Wednesday	Evidence in Chief and Cross Examination Workshop	
Thursday	PNG Lectures	
Friday	PNG Formative Moot	

Module 2 Timetable

				M2 Intensive Model						
	Week 1					Week 2				
	MON	TUES	WED	THURS	FRI	MON	TUES	WED	THURS	FRI
8-9	Course Welcome	2.1 Exam	Hearsay	Human Rights	Alibi	Admissions	Tendency & Coincidence	Credibility	Unfavorable Witnesses	M & D Exclusions
9-10	elements of a criminal offence			ID evidence	Opinion	Workshop			Workshop	Workshop
	break									
1015-11	categorising offences & inchoate	Competence & Compellability	Hearsay	ID Evidence	Workshop	Admission Assessments	Workshop	Workshop	Unfavourable Witness Assessments	M&D Exclusions Assessments
11-12	Defences	complicity	Workshop	Workshop scenario 1	Opinion Assessments					
	lunch									
1-2	RASE Workshop	consciousness of guilt	Workshop	Workshop scenario 2	Opinion Assessments	2.2A EXAM	T&C Assessments	Credibility Assessments	2.2A Exam Re-sits/ Re-assessments	2.2B EXAM
	break									
2-3	M2.1 RASE	Circumstantial Evidence & DREC	Hearsay Assessments	ID Assessments	Resit (M2.1) / Resubmissions		T&C Assessments	Credibility Assessments	2.2A Exam Re-sits/ Re-assessments	2.2B EXAM
3-4		Mental Impairment &						Character		2.2B EXAM
	Week 3					Week 4				
	MON	TUES	WED	THURS	FRI	MON	TUES	WED	THURS	FRI
8-9	Part B welcome (15 mins only)	SCC/CME Moots	Brown v Dunne	Prlimineries & Re opening	Formative Moots 8-10	Formative Moots 8-10	Prep day	1st Assessable Moot 8-10	2nd Assessable Moot 8-10	Costs after PNG
9-10	SCC & WD lecture		EIC XE	Duty to Call/Witness Management						Appeal Info session
	break									
1015-11	case concept	SCC/CME Moots	M2.5 EIC & XE workshop	PNG prep workshop	Formative Moots 10-12	Formative Moots 10-12	Prep day	1st Assessable 10-12	2nd Assessable 10-12	Mod 3 Presentation
11-12	CME Lecture									Welfare Lecture
12-1	LUNCH	lunch								
1-2	SCC/CME Workshop	SCC/CME Moots	M2.5 EIC & XE workshop	PNG Demo	Formative Moots 1-3	Formative Moots 1-3	Prep day	1st Assessable 1-3	2nd Assessable 1-3	Course end & PHOTO
	break									
2-3	SCC/CME Workshop	2.2B Exam Re-sit	M2.5 EIC & XE workshop	Voir dire /submissions	Formative Moots 1-3	Formative Moots 1-3	Prep day	1st Assessable 1-3	2nd Assessable 1-3	
3-4				P/Inconsist						

Course awards and photo

The course will close on Friday **week 4** and will include the presentation of 2 awards:

- **The Chris Park award**

The Chris Park Memorial Award recognises the student who consistently displays leadership, support and dedication throughout the course and is nominated by the student body.

- **Advocacy Award**

The Advocacy Award recognises the student who displayed the best overall advocacy skills for the whole of the course including in-class conduct and Moots, this award is nominated by the Instructors for your course.

Following presentation of the awards, a course photo will be taken.

Learning Outcomes

What can students do on return-to-work unit?

PNG

A field coach is required to work with the student on at least 2 PNG matters (1 x summary / 1 x indictable). After this they may work unsupervised. Due to their limited experience, it is recommended they are initially allocated simplistic contests while they build confidence and experience.

SCC

Pursuant to M2.3 Evidence Portfolio requirements, students must work 5 SCC shifts alongside a qualified prosecutor. The level of supervision needed will depend on the student's confidence, their decisions to either withdraw or proceed on charges will need to be monitored. After these shifts the student may work unsupervised.

CME

Pursuant to the M2.4 Evidence Portfolio requirements, students must undertake 2 CME observations, and may commence minimal CME duties (up to 3 briefs) on the 2nd occasion. Students are then able to continue CME shifts on an unsupervised basis.

Version History

Date of first issue	08/05/23 – version 2023.1 Submitted for approval by VP41916	
Date updated	Summary of change	Member no /FF no.
19/05/23	2023.1 Student Behaviour updated to include Laptop use	41863
01/06/23	2023.2 Learning Outcomes added	41916
10/06/23	2023.3 Instructor names updated; timetable adjusted	41916
17/07/23	2023.4 Updated course model for movement of M2.2A Exam and lecture updates. Mod 3 presentation scheduled.	41916
31/07/23	2023.5 Update RTU to LTU	41916
09/08/23	2023.6 Exam topics added, further information re awards added	41916
06/10/23	2023.7 Pre reading links added as appendix	41916
28/11/2023	2023.8 Update student performance expectations	41916
07/05/2024	2024.1 Contact List updated	41916
15/05/2024	2024.2 Updated schedule	41916
10/10/2024	2024.3 Update schedule and contact list refresh	41916
09/12/2024	2024.4 Update schedule to include 2 nd assessable moot	41916

Pre reading for Module 2 can be located on VPLH